

Defendant's Motion for Attorney's Fees and Costs against Plaintiffs incurred on appeal.

Ruling

1. Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **granted**.
2. Plaintiff shall pay \$30,000 in attorney's fees and \$1,022 in costs, for a total of \$31,022 no later than thirty (30) days from the date of service of this order.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling to the proposed order.
4. No appearance is required at the hearing on May 13, 2026.

6. 9:00 AM CASE NUMBER: C23-01839

CASE NAME: DREW MALM VS. SCOTT HAMMEL

HEARING ON SUMMARY MOTION

FILED BY: HAMMEL, SCOTT

TENTATIVE RULING:

Introduction

Before the Court is Defendants SCOTT HAMMEL INDIVIDUALLY AND AS TRUSTEE OF THE JOAN E. SENAUSKY SURVIVORS TRUST; LUBOFF SENAUSKY, AN INDIVIDUAL; MARK WILLIAM SENAUSKY, AN INDIVIDUAL; VAL STEPHEN SENAUSKY, AN INDIVIDUAL; HILL HOUSE PROPERTY, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY's ("Defendants") Motion for Summary Judgment, or in the alternative summary adjudication to Plaintiff Drew Malm's Second Amended Complaint ("SAC").

After sustaining Defendants' demurrers, the only remaining causes of action in the SAC are (1) the First Cause of Action for Breach of Contract against Hammel only; (2) the Sixth Cause of Action for Intentional Interference with Contractual Relations against Luboff only; and (3) the Seventh Cause of Action for Voidable Transfer (Civil Code § 3439.04) against all Defendants.³ (Ex. 10.)

For the following reasons, the Motion for Summary Judgment is granted.

Factual Background

Plaintiff Drew Malm was retained by Scott Hammel ("Hammel"), in his capacity as Trustee of the Joan E. Senavsky Survivors Trust (the "Trust"), to market and attempt to sell the real properties located at 140 Cielo Via and 0 Arbol Via, Walnut Creek, California (collectively, the "Properties"). (Undisputed Material Fact ("UMF") No. 1.) The Trust and Malm entered into a Residential Listing Agreement (the "Listing Agreement") on November 2, 2020. (UMF No. 2.) No offers to purchase the Properties were obtained during the initial listing period, so at Malm's request, the Listing Agreement was extended with the new expiration date to be December 31, 2021. (S. Hammel Decl., ¶ 5.) During the extended listing period, Malm obtained a single written offer to purchase the Properties from the Potential Buyers.¹ (UMF No. 3.) During their contingency period, Potential Buyers decided to cancel their purchase offer because they had concerns with the legal description of the property and its boundary lines. (UMF No. 4.) The Listing Agreement expired on December 31, 2021. (UMF No. 5.)

By way of Grant Deed recorded on May 8, 2023, Hammel, as Trustee of the Trust, granted the Properties to Defendant Luboff Senavsky ("Luboff"), Mark William Senavsky ("Mark")² and Defendant Val Stephen Senavsky ("Stephen"), in their individual capacities (collectively, the "Beneficiaries"). (UMF No. 6.) Luboff, Mark and Stephen were the sole beneficiaries of the Trust. (UMF No. 8.) Luboff, Mark and Stephen simultaneously granted their interests in the Properties into Defendant Hill House Property, LLC ("Hill House"). (UMF No. 7.) Defendants argue his was a simple transaction whereby the beneficiaries of a Trust decided to disburse the Trust's asset to them. Malm takes the position that he is entitled to a commission of "no less than \$450,000" on the inter-party transfers of the Properties from the Trust to the Beneficiaries.

The facts are undisputed that the Properties did not sell during the Listing Period. (UMF No. 9.) The Properties were not sold or transferred within 365 days of the end of the Listing Period. (UMF No. 10.) Defendants posit the Properties were not withdrawn from sale, conveyed, leased, rented, otherwise transferred, or made unmarketable by a voluntary act of Seller during the Listing Period, or any extension." (UMF No. 11.)

Plaintiff's Contractual Commission Obligation

Section 3 of the Listing Agreement identifies the specific situations in which a commission is earned by Plaintiff. It provides in full:

3. COMPENSATION TO BROKER: Notice: The amount or rate of real estate commissions is not fixed by law. They are set by each Broker individually and may be negotiable between Seller and Broker (real estate commissions include all compensation and fees to Broker). A. Seller agrees to pay to Broker as compensation for services irrespective of agency relationship(s), either 6.000 percent of the listing price (or if a purchase agreement is entered into, of the purchase price), or \$ _____, AND

_____, as follows: (1) If during the Listing Period, or any extension, Broker, cooperating broker, Seller or any other person procures a ready, willing, and able buyer(s) whose offer to purchase the Property on any price and terms is accepted by Seller, provided the Buyer completes the transaction or is prevented from doing so by Seller. (Broker is entitled to compensation whether any escrow resulting from such offer closes during or after the expiration of the Listing Period, or any extension.) OR (2) If within 365 calendar days (a) after the end of the Listing Period or any extension; or (b) after any cancellation of this Agreement, unless otherwise agreed, Seller enters into a contract to sell, convey, lease or otherwise transfer the Property to anyone ("Prospective Buyer") or that person's related entity: (i) who physically entered and was shown the Property during the Listing Period or any extension by Broker or a cooperating broker; or (ii) for whom Broker or any cooperating broker submitted to Seller a signed, written offer to acquire, lease, exchange or obtain an option on the Property. Seller, however, shall have no obligation to Broker under paragraph 3A(2) unless, not later than the end of the Listing Period or any extension or cancellation, Broker has given Seller a written notice of the names of such Prospective Buyers. OR (3) If, without Broker's prior written consent, the Property is withdrawn from sale, conveyed, leased, rented, otherwise transferred, or made unmarketable by a voluntary act of

Seller during the Listing Period, or any extension. (Ex. 1, Sec. 3(A)(2).)

In the SAC, Plaintiff offers three theories as to why he deserves a commission. First, Malm claims that Hammel agreed to transfer the Properties to Luboff, Mark and Stephen within 365 days of the termination of the Listing Period, but conspired with them to wait until after 365 days elapsed to do so in order to prevent Malm from receiving a commission. His second theory is that Hammel was aware of the boundary line issues with the Properties and intentionally withheld this information from Malm with the apparent goal of making any sale of the Properties impossible. Third, Malm claims that Luboff intentionally contacted the Potential Buyers with the goal of disrupting the Listing Agreement. (Ex. 10.)

Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

In ruling on a summary judgment motion, the Court must “accept as true the facts . . . in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them” and “must view the evidence in the light most favorable to plaintiff as the losing party and liberally construe plaintiff’s evidentiary submissions and strictly scrutinize defendant’s own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff’s favor.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.)

“ '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' ” (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) “All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion.” (*Cohen v. Five Brooks Stable, supra*, 159 Cal.App.4th at 1483.)

Analysis

Breach of Written Contract

“A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

In the SAC, Malm offers three theories as to why he deserves a commission. First, Plaintiff Malm claims that Hammel agreed to transfer the Properties to Luboff, Mark and Stephen within 365 days of

the termination of the Listing Period, but conspired with them to wait until after 365 days elapsed to do so in order to prevent Malm from receiving a commission. His second theory is that Hammel was aware of the boundary line issues with the Properties and intentionally withheld this information from Malm with the apparent goal of making any sale of the Properties impossible. Third, Plaintiff claims that Luboff intentionally contacted the Potential Buyers with the goal of disrupting the Listing Agreement. (Ex. 10, SAC, ¶¶ 32, 33.)

1) Failing to Disclose Boundary Line Issues

Plaintiff's first theory of breach is belied by the undisputed fact that Hammel had no knowledge of any boundary line or legal description issues until Malm disclosed them to him. (UMF No. 16.) Plaintiff also concedes in his deposition that he did not know if Mr. Hammel was aware of any boundary line issues. (Ex. 13, 15:23-16:5.) This theory fails.

2) Beneficiary Defendants Causing Cancellation of the Sale

Plaintiff's second theory contains a genuine dispute of material fact.

Both Buyers 1 and 2 were each asked directly why they cancelled the transaction and both responded that it was because of boundary and title issues. (Ex. 4, 19:2-20:14; Ex. 3, 31:16-23.) Buyer 2 added that Luboff going to their front gate had no effect on their decision to cancel the transaction. (Ex. 4, 36:15-22.)

Plaintiff proffers evidence of Buyers agent Karen Riely recalled that she told Plaintiff that Buyer 2 was livid about Luboff physically showing up to the gate of the Buyers property and could potentially blow up the transaction. (AUMF 33, 39.) This offers an evidence backed alternative to Defendant's theory that Buyers cancelled the transaction because of boundary and title issues.

Plaintiff additionally contends that Buyer 1 in their deposition acknowledge that "if we canceled for a reason not covered in the contract, we might be subject to losing the deposit." (AUMF 49; McReynolds Decl., ¶ 6, Ex. I to AOE, [Buyer 1 Depo, 45:6-47:24 & 48:16-17].) The Buyers not wanting to lose their deposit is yet another alternative theory for Buyers cancelling the transaction.

A triable issue of material fact exists if the evidence and inferences therefrom would allow a reasonable juror to find the underlying fact in favor of the party opposing summary judgment. (*Murchison v. County of Tehama* (2021) 69 Cal.App.5th 867, 881 citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Here, there is a question of disputed fact as to why the Buyers canceled the transaction, and it requires the trier of fact to weigh competing evidence of the testimony of the buyers, the buyer's agent and the surrounding circumstances.

a. Conspiracy and Aiding and Abetting Theory

"An independent civil wrong is required for the claim of civil conspiracy, the elements of which "are (1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1406, fn. 7.)

The SAC alleges a conspiracy theory against Defendants in paragraph 11 on the basis that all Defendants conspired to deprive Plaintiff of his commission. Plaintiff also concedes that he has no knowledge of any facts to support his allegation in paragraph 11 of the SAC that Defendants engaged in a conspiracy of any sort. (Ex. 7, Req. No. 7.)

Defendants argue that they wanted the transaction with the Potential Buyers to go through were all disappointed when the sale was cancelled. (S. Hammel Decl., ¶ 11; L. Senavsky Decl., ¶ 6; S. Senavsky

Decl., ¶ 6.) More than a year after the Listing Agreement was cancelled, they and Hammel made the decision to disburse the Properties to themselves, individually. (S. Hammel Decl., ¶ 12; L. Senavsky Decl., ¶ 8; S. Senavsky Decl., ¶ 7.) Defendants posit that this decision had nothing to do with Malm or the Listing Agreement.

Plaintiff provides evidence that on December 28, 2021, Stephen Senavsky sent an email to Hammel confirming a September 2021 meeting stating: "The last item of discussion from the meeting was deeding the Hill House property to Mark, Buff and I ... which you indicated could happen after Drew was out of the picture. You said you saw this possibly happening in spring of 2022." Stephen also noted in regard to the sale of the property that: "We didn't like the deal to begin with." (AUMF 38; Ex. M to AOE [Luboff Depo, Vol. 2, 155:4-13 & 159:25- 160:3], McReynolds Dec., ¶ 7, Ex. K to AOE [Stephen Depo, 86:16-21 (Authenticating Deposition Exhibit 35, the December 28, 2021, Stephen email to beneficiaries confirming their agreements and conversation with Hammel)].)

This evidence does present a dispute of material of fact of whether the Defendants' motives were to try to cancel the transaction due to sense of what Defendants' may have perceived as unfavorable contract terms in the Listing Agreement. In sum, Plaintiff has produced evidence that would allow a reasonable trier of fact to conclude that Defendants may have conspired together to cancel the transaction to avoid having to pay Plaintiff according to the Listing Agreement.

3) Transferring the Property to the Beneficiary Defendants

Pursuant to Section 3(A)(2) of the Listing Agreement, commission is due if "Seller enters into a contract to sell, convey, lease or otherwise transfer the Properties to anyone ("Prospective Buyer") or that person's related entity: (i) who physically entered and was shown the Properties during the Listing Period or any extension by Broker or a cooperating broker; or (ii) for whom Broker or any cooperating broker submitted to Seller a signed, written offer to acquire, lease, exchange or obtain an option on the Properties....." (Ex. 1, Sec. 3(A)(2) (emphasis added).) Defendants Luboff, Steve and Mark were not shown the Properties by any broker during the Listing Period. (UMF No. 19.) Defendants Luboff, Steve and Mark did not submit to Hammel an offer to acquire, lease, exchange or obtain an option on the Properties during the Listing Period. (UMF No. 20.)

In sum, Defendants did not breach the Listing Agreement even if the transfer to the Beneficiary Defendants took place within the 365-day window following the expiration of the Listing Agreement because the transpired events did not breach the terms set forth in Section 3(A)(2) of the Listing Agreement. This theory fails.

a. Conspiring to Transfer Properties to Beneficiaries More Than 365 Days After Cancellation of Listing Agreement to Avoid Payment of Commission

"An independent civil wrong is required for the claim of civil conspiracy, the elements of which "are (1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1406, fn. 7.)

As explained in the section above, the actions complained of in the SAC if made within the 365-day post expiration window of the Listing Agreement would not give rise to a breach of contract. Thus, there were be no independent civil wrong which is required for a conspiracy.

Intentional Interference with Contractual Relationship

In order to prevail on a cause of action for Intentional Interference with Contractual Relations, Plaintiff must allege the following: (1) the existence of a valid contract between the plaintiff and a

third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damages. (*Reeves v. Hanlon* (2004) 33 Cal. 4th 1140.)

The sixth cause of action for intentional interference with contractual relationship is solely concerned with Defendant Luboff's appearing unannounced at the Buyers' property. (Ex. 10, SAC ¶¶ 45-52.)

Separate Statement number 23 reads, "Luboff did not intend to interfere with the Purchase Agreement or Listing Agreement." Plaintiff responded that it is undisputed and immaterial. Because Plaintiff does not dispute that Defendant Luboff did not intentionally interfere with the Purchase or Listing Agreement, Defendant has successfully disproven the intent element and disposed of this cause of action.

Voidable Transfer (Civil Code § 3439.04)

A transfer of assets made by a debtor is fraudulent as to a creditor, whether the creditor's claim arose before or after the transfer, if the debtor made the transfer (1) with an actual intent to hinder, delay or defraud any creditor, or (2) without receiving reasonably equivalent value in return, and either ... (a) was insolvent at the time of the transfer, or (b) became insolvent as a result of the transfer. (*Cortez v. Vogt* (1997) 52 Cal.App.4th 917, 928.)

The seventh cause of action for voidable transfer is solely based on the transfers from the Trust to the Beneficiary Defendants then from the Beneficiary Defendants to Hill House LLC. (Ex. 10, SAC ¶¶ 53-56.)

As explained above, Plaintiff is not a creditor and Defendants are not debtors in this situation because the transpired events Plaintiff complains of does not amount to a breach the terms set forth in Section 3(A)(2) of the Listing Agreement. (See section 3.)

Alter Ego Theory

Plaintiff Malm alleges generally that all Defendants were the alter egos of one another and that the Beneficiaries only are the alter egos of the LLC. (Ex. 10, SAC ¶¶ 13-14.) The Court declines to rule on this issue because this issue is moot since the only surviving claim is the first cause of action for breach of contract against Defendant Hammel. The alter ego theory is inapplicable to the sole remaining breach of contract cause of action.

Conclusion

For the reasons stated above, Plaintiff's MSJ is denied. Motion for summary adjudication is denied as to the breach of contract claim and the declaratory relief claim.

Evidentiary Objections

The Court need only rule on those objections to evidence that are material to the disposition of the MSJ. (See CCP § 437c(q).)

Plaintiff's Objections

OBJ 3: Luboff Decl. ¶ 3. **Sustained.**

OBJ 4: Stephen Decl. ¶ 3. **Sustained.**

OBJ 20: McDonald Decl. ¶ 3. **Sustained.**

OBJ 21: McDonald Decl. ¶ 4. **Sustained.**

7. 9:00 AM CASE NUMBER: C24-00106

CASE NAME: YEKATERINA RAMIREZ VS. THE SPEECH PATHOLOGY GROUP, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**

FILED BY: RAMIREZ, YEKATERINA

TENTATIVE RULING:

Summary

On December 22, 2025, Plaintiff Yekaterina Ramirez ("Plaintiff"), filed a motion for preliminary approval of the proposed class action settlement with Defendant The Speech Pathology Group, Inc. ("Defendant"), (Plaintiff and Defendant are collectively hereinafter referred to as "the Parties").

The Court **grants** this Motion for Preliminary Approval of the Class Action Settlement as set forth herein. No appearance is required at the hearing on May 13, 2026.

Background and Settlement Terms

This case is a proposed employee wage and hour class action case. On January 16, 2024, Plaintiff commenced this litigation by filing a class complaint alleging causes of action against Defendant for: 1) Failure to pay wages for all hours worked as minimum wage in violation of Labor Code Sections 1194 and 1197; 2) Failure to pay overtime wages for daily overtime worked in violation of Labor Code Sections 510 and 1194; 3) Failure to authorize or permit meal periods in violation of Labor Code Sections 512 and 226.7; 4) Failure to Authorize or permit rest periods in violation of Labor Code Section 226.7; 5) Failure to provide complete and accurate wage statements in violation of Labor Code Section 226; 6) Failure to timely pay all earned wages and final paychecks due at time of separation of employment in violation of Labor Code Sections 201, 202 and 203; and 7) Unfair business practices in violation of Business and Professions Code Sections 17200, et. Seq. (See Sloane Dec. ¶4.)

According to Plaintiff's Motion, the named Plaintiff worked as hourly-paid, non-exempt employees of Defendant and seek to represent approximately 1501 current and former hourly, non-exempt employee who worked for Defendant in California during the Class Period (hereinafter "Class" or "Class Members"). "Class Period" means the period from January 16, 2020, through the earliest of (i) 60 days from the Mediation Date (July 27, 2025) or (ii) the date the Court enters an order preliminarily approving the settlement proposal.

Pursuant to Labor Code section 2699.3, subd. (a), Plaintiff gave timely written notice to Defendant and the LWDA by sending the PAGA Notice on January 16, 2024. (Sloane Dec. ¶5.) On March 25, 2024, Plaintiff filed a Private Attorneys General Act of 2004 ("PAGA") complaint alleging a cause of action for Civil Penalties pursuant to PAGA, Labor Code Sections 2698, et. seq. (Sloane Dec. ¶6.) On December 9, 2025, Plaintiff filed a First Amended Complaint adding alleged cause of action against Defendant for Civil Penalties Pursuant to The Private Attorneys General Act of 2004 ("PAGA"), Labor Code Sections 2698, et. Seq. (Sloane Dec. ¶7.)